



Scientists for Genetic Diversity (SGD)

Conservation – Sustainability – Equitable Sharing of Benefits

Comments on Draft Seeds Bill, 2025 for consideration

To

December 10, 2025

The Joint Secretary (Seeds)

Ministry of Agriculture & Farmers' Welfare

Government of India, Email: jsseeds-agri@gov.in

Dear Sir,

Part-A: Details of person or organization (as the case may be) for making comments/ suggestions

Name and Designation of the person	
Contact Details Address, E-mail, Mobile	
Name of the Organisation/Agency (If any associated)	Scientists for Genetic Diversity (SGD) <i>Members: Dr Suman Sahai; Dr Sarath Babu Balijepalli; Dr Dinesh Abrol and Dr Soma Marla</i>
Contact Details Address, E-mail, Mobile	Dr Sarath Babu Balijepalli Villa No. 89, Phase -1 Keerthi Richmond Villas, Suncity, Hyderabad 500085, Telangana, India, Email: sarath60@yahoo.com , Mobile: 9490189632

Part-B Comments/ Suggestions

S. No.	Section to Amend/ Incorporate	Issue	Comments/Suggestions
1.	Preamble	Lack of explicit commitment to the needs of small and marginal farm holders, ensuring national food and nutritional sovereignty, climate resilience, an ecologically adapted farmer-centric legal framework, and safeguarding farmers' fundamental rights.	WHEREAS the future of India's food and nutritional sovereignty and resilience against climate turbulence and soil degradation rests upon a self-reliant, sustainable agricultural system AND WHEREAS the availability of high-quality, ecologically adapted seed is the foundational determinant of a productive and sustainable agriculture system that guarantees the welfare of its citizens; AND WHEREAS it is essential to establish a robust, comprehensive, and farmer-centric framework to regulate, monitor, and strategize the decentralized production of seeds adapted to the unique requirements of every agro-ecological zone and ecosystem in the country, with an emphasis on the needs of small and marginal farmers who form the backbone of Indian farming; AND WHEREAS this legislative framework must ensure the quality and availability of seeds to all cultivators and explicitly safeguard the fundamental rights of farmers to save, use, sow,



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			re-sow, exchange, share and SELL farm-saved seeds. NOW, THEREFORE, it is expedient to enact a law to ensure national self-reliance in seed production, curb the sale of spurious and sub-standard seed, establish a mechanism for farmer protection and grievance redressal, and, in doing so, secure the interests and rights of the farming community while fostering an environment of accountability and excellence in the seed sector.
2.	A new Section for Compensation Fund	Current compensation is limited to seed cost, which is negligible compared to economic loss.	Mandatory Compensation Fund and Total Economic Loss Formula: Create a new sub-section establishing a Compensation Fund under the National Seeds Authority (NSA). Mandate that compensation for underperformance (New Section) shall be determined based on the Total Economic Loss, which includes: (i) Cost of seed, (ii) Loss of anticipated yield (calculated based on average yield for that area/crop), and (iii) Additional cost of re-sowing and additional crop management.
3	A new sub-section 13	Pedigree is not mentioned in the draft seed bill. This will enable biopiracy and violate existing laws like the PPVFRA	A detailed pedigree must be submitted for each variety/hybrid submitted for registration. Any falsification or concealment of parts of the pedigree will attract a penalty of Rs 3 crore and cancellation of registration
4	Section 14: Certificate of Registration (New Sub-section Required)	Seed companies often liquidate or become insolvent to avoid compensation payments. This ties the company's financial stability directly to its liability, ensuring that a farmer can always receive compensation, irrespective of the company's current financial status.	Mandatory Liability Insurance/Security Deposit: No Certificate of Registration shall be granted to a seed company without proof of a non-lapsing, high-value insurance policy or a substantial security deposit held in escrow, specifically earmarked for covering compensation liabilities proposed under the New Section.
5.	Section 16(3): Acceptance of VCU Data	Provision allows for the approval of Variety Identification (VCU) test results conducted in foreign countries (outside India).	Strong Objection: India's diverse agroclimatic, soil, pest, and disease conditions are unique and may not be comparable to testing environments in foreign countries. Any importing party must abide by VCU tests conducted within India by Central /Seed Committee-designated public research institutions only.
6.	Section 23: Seed Testing and Analysis	Farmers often complain that samples are tampered with or replaced during collection. Joint sampling ensures transparency, builds farmer trust, and	Mandatory Third-Party/Joint Sampling: Amend to make it mandatory that when a farmer files a complaint, the sample collection (Section 23(1)) must be done by two independent witnesses, including a farmer representative from the village/Panchayat or a certified Krishi Vigyan



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		prevents corrupt practices, making the test report legally sound.	Kendra (KVK) representative, alongside the Seed Inspector.
7.	Section (Related to Import/Accreditation)	Risk of low-quality imports and manipulation of foreign/private certification.	Restriction on Foreign Certification and Enhanced Domestic Oversight: DELETE the provision concerning the recognition of foreign certification agencies by the Seed Committee/NSA. The process must remain strictly under domestic regulation. Accredited domestic private laboratories may conduct quality investigations, provided their oversight committees MUST include mandatory representation from government representatives and Farmer Organizations/Scientists alongside seed company representatives.
8.	Section 34 (Offences and Penalties)	Penalties for serious fraud (such as spurious/sub-standard seeds) are not deterrents and do not support farmers. This structure aligns with the bill's stated objective of decriminalizing offenses to promote "Ease of Doing Business," shifting the focus towards monetary penalties rather than immediate criminal prosecution for initial violations.	Just and Deterrent Penalties: Classify the supply of spurious seeds or the repeated sale of sub-standard seeds as a Major Offence (Second Schedule Part C) . Penalties must be substantially increased to serve as a genuine deterrent, including mandatory financial compensation covering all losses (as per S.No. 2) and include executive liability for grievous, intentional fraud. It is recommended to enhance the penalties as follows.... First offence Fine: ₹ seventy-five lakh Repeat offense Fine: ₹ 1.5 crore Second Repeat Offence • Fine: ₹ 3.0 crore. • Action: Cancellation of dealer registration OR imprisonment for a term which may extend to five years, or both. In addition to the penalties, the bill should include and enforce compensation as provided under the proposed New Section.
9.	New Section (Price Regulation)	High seed prices make registered varieties unaffordable for small and marginal farmers.	Price Control and Compulsory Licensing: Introduce a new section empowering the Central Government to impose Price Control on any registered seed variety to ensure affordability for small and marginal farmers. Mandate Compulsory Licensing during situations of national seed scarcity or market monopoly to ensure supply and keep prices controlled. Price control rights must explicitly remain with the states.
10.	New Section (e.g., 42A: Digital Traceability & Grievance)	Lack of transparency in performance data and complaint resolution.	Mandatory Digital Public Grievance Mechanism: Mandate that seed companies must upload mandatory, validated, location-specific performance data on the SATHI portal. Establish a live, geo-tagged, public database of all farmer



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			complaints filed against that specific variety, including the real-time status and amount of compensation, to leverage market pressure for quality control.
11.	New Sub-Section (Under PPV&FR Act Protection)	Potential for the Bill's stringent registration to dilute the fundamental rights guaranteed by the PPV&FR Act, 2001.	Explicit Safeguard for Farm-Saved Seed Rights: Add a new, overriding sub-section explicitly stating that nothing in this Bill shall supersede, dilute, or restrict the rights of farmers as guaranteed under Section 3(a) of the Protection of Plant Varieties and Farmers' Rights (PPV&FR) Act, 2001 , especially the right to save, use, sow, re-sow, exchange, or share, and SELL farm-saved seed of a registered variety.
12.	Section (Related to Offences and Penalties)	Decriminalization of Petty Offences shifts balance heavily towards corporate ease of business.	Balanced Review of Corporate Gains: The Decriminalization of Petty Offences (Second Schedule Part A, e.g., minor record-keeping failures) provides significant 'Ease of Doing Business' gains for companies. This benefit must be balanced by the implementation of the robust financial liability model (S.No. 2) and mandatory transparency (S.No. 6) to ensure the reduction in compliance burden does not result in reduced accountability.
13.	New Chapter/Section (e.g., Chapter IX: Community Conservation)	Traditional and farmer-developed varieties are excluded, hindering in situ conservation and sustainable utilization of diversity.	Special Status and Support for Community Seed Banks (CSBs): Introduce a specific Chapter/Section to recognize and empower Individual Farmers and Community Seed Banks to produce, multiply, and sell their traditional and farmer-developed varieties. Exemption and Soft Registration: These varieties must be exempted from all mandatory registration procedures under the New Seed Act, 2025, and provided a soft registration process with minimal fees . CSB Financial and Technical Support (Annex 1 Substance): The Act must allocate dedicated funds and technical staff support for CSBs and ensure institutional linkage to the National Gene Bank for technical support, evaluation, and characterization.
14.	Section (Related to Seed Testing in Dispute)	Unfair investigation process where farmers' evidence is often overridden by official testing.	Mandatory Joint Sample Testing Protocol: Mandate that in all compensation cases, the testing of disputed seed samples must follow a Joint Sample Testing Protocol where the farmer/farmer's representative is required to be present alongside the company's representative during the testing process to ensure impartiality and trust in the investigation.

Summary of Key Demands from SGD

The SGD emphasizes that the Draft Seeds Bill, 2025, must be anchored in three core principles:

1. **Mandatory and Realistic Financial Liability:** Seed companies must be held fully accountable for crop loss, moving beyond simple seed cost refunds to cover the farmer's **total economic loss** (S.No. 2).



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2. **Explicit Protection of PPV&FR Act, 2001 Rights:** The Bill must contain an explicit safeguard clause preventing it from diluting the farmer's fundamental right to save, use, exchange and SELL farm-saved seeds (S.No. 7).
3. **Empowerment of Community Conservation:** Institutional support must be enshrined in the Act for Community Seed Banks and traditional farmer varieties, recognizing them as essential for genetic diversity and local food security (S.No. 9).
4. Introduce a provision for **Compulsory License** so that the government can ensure seed supply of a registered variety if it is overpriced or in short supply

These amendments aim to pivot the Bill toward social justice and farmer welfare, making seed companies legally responsible for the quality they certify.

Sincerely,

Scientists for Genetic Diversity

Dr Suman Sahai

Dr Sarath Babu Balijepalli

Dr Dinesh Abrol

Dr Soma Marla

Enclosed: Detailed Tabulated Suggestions and Amendments to the Draft Seeds Bill, 2025.

CC:

1. **Devesh Chaturvedi**, Secretary, Ministry of Agriculture & Farmers' Welfare
2. **Dr Mangi Lal Jat**, Director General, Indian Council of Agricultural Research
3. **Dr Gyanendra Pratap Singh**, Director, ICAR-NBPGR, New Delhi